



SNAP Residency Requirements

Policy 24.10

Effective: July 1, 2019

Introduction

The Tennessee Department of Human Services (TDHS) shall meet federal and state guidelines in regards to residency requirements of Supplemental Nutrition Assistance Program (SNAP) clients to determine eligibility for benefits.

Scope

To provide procedures and guidelines for staff to ensure compliance in determining the residency of applicants/clients for Supplemental Nutrition Assistance Program (SNAP) eligibility, along with maintenance of that compliance to remain eligible for assistance. In doing so, staff will be responsible for considering the definition of a resident, the termination of residency, how to report an address, and the verification of residency.

Policy

A. Residency Requirement

1. As a condition of eligibility to receive benefits in Supplemental Nutrition Assistance Program (SNAP), the household (HH) must reside in Tennessee.
2. No individual may receive benefits as a member of more than one (1) HH or in more than one (1) county or state within the same month. However, there is one (1) exception to the residency requirement.

Individuals may participate as members of more than one HH if such persons are residents of a shelter for battered persons and children and were members of a HH containing the person who had subjected them to abuse. (Refer to [Policy 24.06 SNAP Special Living Arrangements](#)).

3. There is no durational residency requirement in SNAP. Residence does not mean intent to reside permanently.

B. Definition of a Resident

1. A resident is an individual who lives in the state of Tennessee and in the county where they receive benefits.
2. A permanent dwelling or fixed mailing address is not required.
3. Residence does not mean intent to reside permanently in the county and a durational requirement cannot be imposed on the HH.
4. Persons in the county solely for short term vacations are not considered residents of that county.

C. Termination of Residence

1. When the county becomes aware that a SNAP recipient leaves the state or the country the case must be closed.
 - a. If the HH is a simplified reporting (SR) HH they are not required to report a change in residency except at the time of SR and at recertification.
 - b. If the HH is not SR the HH is required to report the change within ten (10) days.
2. SNAP recipients may transfer from county to county within the state and remain eligible for benefits without interruption. They can report this change on [HS-2302 Change Report](#). Refer to Chapter 41 Continued Responsibilities of the [Supplemental Nutrition Assistance Program \(SNAP\) Policy Manual, effective 07/13/2017](#).

Refer to desk guide [County-to-County Transfers](#) on how to transfer cases.

D. Documenting Addresses

Staff shall refer to [Documenting Addresses in ACCENT and Returned Mail](#) for the procedure on how to document when a client reports an address.

E. Verification

1. The eligibility counselor will verify residence prior to certification, except in unusual cases where verification of residency cannot reasonably be accomplished.

Unusual cases are migrant farm worker HHs, homeless HHs or HHs newly arrived in a county who may not be able to verify their residency prior to certification or individuals participating in the [Safe at Home \(SAH\) Address Confidentiality Program](#).

- a. In these cases, the HH's statement that it resides in the county may be the only verification available.
 - b. Benefits should not be denied to these individuals if they are unable to provide verification of residence.
 - c. Refer to [Safe at Home Address Confidentiality Program](#) for procedures on verifying information from participants in the SAH program.
2. Verification of residency should be accomplished, to the extent possible, in conjunction with the verification of other information.

Other information includes, but is not limited to rent and mortgage payments, utility expenses, and identity.

3. If verification cannot be accomplished in conjunction with the verification of other information, the eligibility counselor will use a collateral contact or other readily available documentary evidence.
4. Documents used to verify other factors of eligibility may suffice to verify residency as well.
5. Any documents or collateral contacts which reasonably establish the applicant's residency must be accepted, and no requirement for a specific type of verification may be imposed.
6. No durational residency requirement will be established.
7. When evidence is necessary to establish residence, documents with the HH's address are the primary source of verification, although collateral contacts and/or home visits may be used if documentary evidence cannot be obtained.
8. The individual may supply the verification in the form of documentation, such as a driver's license, rent receipt, utility or other recently received bill, voter registration card, or similar means.
9. Verification shall not be limited to a single document and assistance in obtaining verification may be necessary.
10. In addition to valid addresses, the county should be alert to duplicate addresses. While it is possible for more than one HH to occupy a given residence, duplicate addresses may constitute a questionable circumstance and may require verification.
11. Home visits may be used as verification of residency only if documentary evidence cannot be obtained and the visit is scheduled in advance with the SNAP HH.
12. A collateral contact is a verbal and/or written confirmation of a HH's circumstances by a person outside of the HH who is in a position to know the facts. The collateral contact may be made either in person, over the telephone, or by correspondence. The acceptability of a collateral contact will not be restricted to a particular individual, but may be anyone who can be expected to provide an accurate third party verification of the HH's statement.
13. When information from another source contradicts statements made by the HH, the HH will be afforded a reasonable opportunity to resolve the discrepancy prior to an eligibility determination. If discrepancies cannot be resolved in a reasonable period of time, benefits will be denied/terminated.

Supporting Documents

[National Change of Address \(NCOA\) Match, GRPA41B Required Verifications](#)

[Policy 24.06 SNAP Special Living Arrangements](#)

[County-To-County Transfers](#)

[Supplemental Nutrition Assistance Program \(SNAP\) Policy Manual, effective 07/13/2017](#)- Chapter 41 Continued Responsibilities

[Documenting Addresses in ACCENT and Returned Mail](#)

[Safe at Home Address Confidentiality Program](#)

[HS-2302e Change Report](#) (English) ([instructions](#))

[HS-2302sp Change Report](#) (Spanish) ([instructions](#))

[HS-2302a Change Report](#) (Arabic) ([instructions](#))

[HS-2302s Change Report](#) (Somali) ([instructions](#))

Definitions/Acronyms

Term	Definition
Durational residency	A legal rule requiring a person to be a state resident for a certain period of time.
Homeless	An individual who lacks a fixed and regular nighttime residence or an individual who has a primary nighttime residence that is one (1) of the following: 1. A supervised publicly or privately operated shelter (including a welfare hotel or congregate shelter) designed to provide temporary living accommodations; 2. An institution that provides a temporary residence for individuals intended to be institutionalized; 3. A temporary accommodation for not more than ninety (90) days in the residence of another individual; or 4. A public or private place not designed or ordinarily used as a regular sleeping accommodation for human beings.
HH	Household
NCOA	National Change of Address
SAH	Safe at Home Address Confidentiality Program
SNAP	Supplemental Nutrition Assistance Program
SR	Simplified Reporting
TDHS	Tennessee Department of Human Services

Supersedes

Chapter 5: Residence of the SNAP Policy Manual effective July 13, 2017

Authority

CFR 7 §273.3; §273.2

Tenn. Code Ann. § 71-5-303

Tenn. Comp. R. & Regs. 1240-01-03-.02[Residence]; 1240-01-03-.06[Verification]

Application

All TDHS Employees and Contractors

Revision History

Date	Version	Location of Change	Description/Reason for Change
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Approval History

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